DOCUMENT ID: LEGAL-001
CATEGORY: Statute
ISSUE DATE: 2007-05-23
ISSUING AUTHORITY: Legislative Assembly of Tamil Nadu / Water Resources Department
DESIGNATED OFFICER: Assistant Engineer / Junior Engineer (WRD Irrigation Section) & Tahsildar
SOURCE URL: https://www.indiacode.nic.in/handle/123456789/13289
LICENCE: Public statutory enactment under Section 52(1)(q) of the Indian Copyright Act, 1957.

OFFICIAL TITLE:
Tamil Nadu Protection of Tanks and Eviction of Encroachment Act, 2007 (Act 8 of 2007)

SUMMARY & APPLICABILITY TO ERIWATCH (TAMIL NADU IRRIGATION TANKS):
This statutory / government / judicial record governs the protection, survey, maintenance, desilting, flood regulation, pollution control, and eviction of encroachments in traditional village irrigation tanks (eris) across Kancheepuram and Chengalpattu districts in Tamil Nadu.

LEGAL-001 - OPERATIVE CLAUSES & STATUTORY DIRECTIVES (PAGE 2)
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Addressed / Competent Officer: Assistant Engineer / Junior Engineer (WRD Irrigation Section) & Tahsildar

CLAUSE 1: Section 4 & Section 6
Section 4 mandates the Survey Officer to survey irrigation tanks, fix boundary stones along the Full Tank Level (FTL) and foreshore, and publish the tank chart. Section 6 empowers the Officer of the Public Works / Water Resources Department to issue Form-II and Form-III notices directing any encroacher to remove the encroachment within 21 days.

CLAUSE 2: Section 7 & Section 8
Section 7 empowers the WRD Officer, with police and revenue assistance, to summarily evict any person failing to comply with a Section 6 notice and forfeit crops or structures erected inside the tank bed, bund, supply channel, or surplus course. Section 8 prescribes imprisonment up to 3 months or fine for unlawful entry, bund damage, or obstruction of water flow.